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STATE OF RHODE ISLAND

IN GENERAL ASSEMBLY

JANUARY SESSION, A.D. 2026

A N A C T

RELATING TO MOTOR AND OTHER VEHICLES -- DEFINITIONS AND GENERAL CODE PROVISIONS

Introduced By: Representatives Hull, Bennett, Biah, Shallcross Smith, and Azzinaro

Date Introduced: February 27, 2026

Referred To: House State Government & Elections

(Dept. of Transportation)

It is enacted by the General Assembly as follows:

1 SECTION 1. Section 31-1-9 of the General Laws in Chapter 31-1 entitled "Definitions and
2 General Code Provisions" is hereby amended to read as follows:

3 **31-1-9. Mobile equipment.**

4 “Mobile equipment” means every vehicle not designed or used primarily for the
5 transportation of persons or property and only incidentally operated or moved over a highway,
6 including but not limited to: ditch digging apparatus, well boring apparatus, and road construction
7 or maintenance machinery such as asphalt spreaders, bituminous mixers, bucket loaders, tractors
8 other than truck tractors, ditchers, leveling graders, finishing machines, motor graders, road rollers,
9 scarifiers, earth moving carry-alls and scrapers, power shovels and drag lines, and self-propelled
10 cranes and earth moving equipment. The term does not include house trailers, dump trucks, truck
11 mounted transit mixers, cranes, or shovels, or other vehicles designed for the transportation of
12 persons or property to which machinery has been attached. [For the purposes of this section](#)
13 ["incidentally" means actively participating in work in an active work zone, or crossing a highway](#)
14 [within a work zone. This does not include travelling down a highway under their own power.](#)

15 SECTION 2. This act shall take effect upon passage.

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EXPLANATION
BY THE LEGISLATIVE COUNCIL
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- 1 This act would clarify when mobile equipment can travel on a public highway as an
- 2 incidentally permitted practice limited to the active participation in an active work zone.
- 3 This act would take effect upon passage.

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